

Product Classification & Regulation

[PART XVI (A) APPROVAL OF INSTITUTIONS FOR CARRYING OUT TESTS ON AYURVEDIC, SIDDHA AND UNANI DRUGS AND RAW MATERIALS USED IN THEIR MANUFACTURE ON BEHALF OF LICENSEES FOR MANUFACTURE FOR SALE OF AYURVEDIC, SIDDHA AND UNANI DRUGS]

1)160A

TITLE: Application for Approval of Laboratory for Testing Ayurvedic, Siddha and Unani Drugs

JURISDICTION: India

CATEGORY: Product Classification & Regulatory Compliance

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 160-A

PLAIN ENGLISH SUMMARY:

Rule 160-A specifies the procedure for obtaining or renewing approval for a laboratory that tests Ayurvedic, Siddha and Unani drugs and the raw materials used to manufacture them. The laboratory must apply in Form 47 to the appropriate Licensing/Approving Authority, along with the prescribed inspection fee. The rule covers testing for identity, purity, quality and strength.

THE EXACT LEGAL TEXT:

160-A. Application for grant of approval for testing Ayurvedic, Siddha and Unani drugs.— Application for grant or renewal of approval for carrying out tests for identity, purity, quality and strength of Ayurvedic, Siddha and Unani drugs or the raw materials used in the manufacture thereof on behalf of licensees for manufacture for sale of the said Ayurvedic, Siddha and Unani drugs, shall be made in Form 47 to the Licensing Authority appointed by the State Government for the purposes of Part XVI, XVII or XVIII of these rules, as the case may be, and referred to as the ‘approving authority’ under this Part and shall be accompanied by an inspection fee of six thousand rupees in respect of the drugs specified in the books prescribed in First Schedule to the Act.

Provided that the applicant shall furnish to the approving authority such additional information as may be required by it in connection with the application in Form 47:

Provided further that if the applicant applies for renewal of approval after its expiry but within six months of such expiry, the inspection fee payable shall be six thousand rupees plus an additional inspection fee at the rate of one thousand rupees per month in the case of testing of Ayurvedic, Siddha and Unani drugs specified in First Schedule to the Act.

Explanation.—For the purpose of this Part, the words “Ayurvedic, Siddha and Unani drugs” shall also mean and include the raw materials used in the manufacture of Ayurvedic, Siddha and Unani drugs, as the case may be.

KEYWORDS/TRIGGERS:

Rule 160A, ASU drug testing, laboratory approval, Form 47, Ayurvedic drug testing, identity purity quality strength, raw material testing

2)160B

TITLE: Conditions for Approval of Laboratories Testing Ayurvedic, Siddha and Unani Drugs

JURISDICTION: India

CATEGORY: Product Classification & Regulatory Compliance

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 160-B

PLAIN ENGLISH SUMMARY:

Rule 160-B specifies the conditions that a laboratory must satisfy to obtain or renew approval for testing Ayurvedic, Siddha and Unani drugs. Approval is granted in Form 48. The laboratory must have suitable premises, adequate space, qualified experts and staff, appropriate testing equipment, recognized pharmacopoeial standards and reference samples, and must conduct testing for identity, purity, quality and strength under qualified supervision.

THE EXACT LEGAL TEXT:

160-B. Form in which approval to be granted for carrying out tests on Ayurvedic, Siddha and Unani drugs on behalf of licensees for manufacture of Ayurvedic, Siddha and Unani drugs and conditions for grant or renewal of such approval.—

(1) Approval for carrying out such tests of identity, purity, quality and strength of Ayurvedic, Siddha and Unani drugs as may be required under the provisions of these rules, on behalf of licensee for manufacture of Ayurvedic, Siddha and Unani drugs shall be granted in Form 48.

(2) Before approval in Form 48 is granted or renewed, the following conditions shall be complied with by the applicants, namely:—

(i) The premises where the tests are carried out shall be well lighted and properly ventilated except where the nature of tests of any Ayurvedic, Siddha and Unani drug warrants otherwise. Wherever necessary, the premises shall be air-conditioned so as to maintain the accuracy and

functioning of laboratory instruments or to enable the performance of special tests such as sterility tests and microbiological tests.

(ii) (a) The applicant shall provide adequate space having regard to the nature and number of samples of drugs proposed to be tested:

Provided that the approving authority shall determine from time to time whether the space provided continues to be adequate:

Provided further that separate section shall be provided for (i) Chemistry, (ii) Pharmacognosy, (iii) Ayurveda, Siddha and Unani, (iv) Microbiology, (v) Sample Room, (vi) Office-cum-Record Room, with proper partitions and minimum required area is 800 sq. ft.

(b) The applicant shall provide a list of persons who may be employed with him as experts, such as Chemist, Botanist and expert in Ayurveda/Siddha/Unani or Pharmacist who shall possess a degree in Chemistry, Botany, Ayurveda/Siddha/Unani/Bachelor in Pharmacy from a recognized University or equivalent, with experience for 2 years for carrying out tests or analysis as per the Ayurvedic, Siddha and Unani Pharmacopoeias.

The applicant shall provide adequate equipment essential for carrying out tests for identity, purity, quality and strength of Ayurvedic, Siddha and Unani drugs as per pharmacopoeial standards or other available standards.

(3) The applicant shall provide and maintain suitable equipment having regard to the nature and number of samples of Ayurvedic, Siddha and Unani drugs intended to be tested which shall be adequate in the opinion of the approving authority.

(4) The testing of Ayurvedic, Siddha and Unani drugs, as the case may be, for identity, purity, quality and strength shall be carried out under the active direction of one of the experts stated in clause (b) of sub-rule (2) who shall be the person-in-charge of testing and shall be held responsible for the reports of test issued by the applicant.

(5) The testing of Ayurvedic, Siddha and Unani drugs, as the case may be, for identity, purity, quality and strength shall be carried out by persons whose qualifications and experience of testing are adequate as stated in clause (b) of sub-rule (2).

(6) The applicant shall provide books of standards recognized under the provisions of the Act and the rules made thereunder and such books of reference as may be required in connection with the testing or analysis of the products for the testing of which approval is applied for.

(7) The applicant shall provide list of standard Ayurvedic, Siddha and Unani drugs (Reference samples) recognized under the provisions of the Act and rules made thereunder and such reference samples kept in the laboratory may be required in connection with the testing or analysis of the products of which approval is applied for.

3)160C

TITLE: Duration of Approval for Ayurvedic, Siddha and Unani Drug Testing Laboratory

JURISDICTION: India

CATEGORY: Product Classification & Regulatory Compliance

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 160-C

PLAIN ENGLISH SUMMARY:

Rule 160-C specifies the validity period of approval granted to a laboratory for testing Ayurvedic, Siddha and Unani drugs. Approval granted in Form 48 or renewed in Form 49 is valid for three years. If renewal is applied for within the permitted period after expiry, the approval can continue until a decision is made; however, if renewal is not applied for within six months of expiry, the approval is deemed to have expired.

THE EXACT LEGAL TEXT:

160-C. Duration of approval.— An approval granted in Form 48 or renewed in Form 49 unless sooner suspended or withdrawn, shall be valid for a period of three years from the date on which it is granted or renewed:

Provided that if an application for the renewal of an approval in Form 40 is made before its expiry or if the application is made within six months of its expiry after the payment of the additional inspection fee, the approval shall continue to be in force until orders to the contrary are passed on the application and approval shall be deemed to have expired if the application for renewal is not made within six months of expiry.

KEYWORDS/TRIGGERS:

Rule 160C, laboratory approval validity, Form 48, Form 49, ASU drug testing, approval renewal, three years validity, renewal after expiry

4)160D

TITLE: Conditions of Approval for Ayurvedic, Siddha and Unani Drug Testing Laboratory

JURISDICTION: India

CATEGORY: Product Classification & Regulatory Compliance

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 160-D

PLAIN ENGLISH SUMMARY:

Rule 160-D specifies the conditions that an approved laboratory must follow while testing Ayurvedic, Siddha and Unani drugs. The laboratory must maintain adequate staff, premises, equipment and storage facilities, maintain complete testing records, allow inspections, report changes in staff or facilities, and issue test reports in Form 50. If a drug sample is found to be not of standard quality, the laboratory must report the result to the concerned authorities.

THE EXACT LEGAL TEXT:

160-D. Conditions of approval.—An approval in Form 48 shall be subject to the following conditions, namely:—

I. The Institution granted approval under this Part (hereinafter referred to as the approved laboratory) shall provide and maintain adequate staff and adequate premises and equipment as specified in rule 160-B.

II. The approved laboratory shall provide proper facilities for storage so as to preserve the properties of the samples to be tested by it.

III. The approved laboratory shall maintain records of tests for identity, purity, quality and strength carried out on all samples of Ayurvedic, Siddha and Unani drugs and the results thereof together with the protocols of tests showing the readings and calculation in such form as to be available for inspection and such records shall be retained in the case of substances for which date of expiry is assigned; for a period of two years from such date of expiry and in the case of other substances, for a period of three years.

IV. The approved laboratory shall allow the Inspector appointed under this Act to enter with or without prior notice the premises where testing is carried out and to inspect the premises and the equipment used for test and the testing procedures employed. The laboratory shall allow the Inspectors to inspect the registers and records maintained under these rules and shall supply to such Inspectors such information as they may require for the purpose of ascertaining whether the provisions of the Act and rules made thereunder have been observed.

V. The approved laboratory shall from time to time report to the approving authority any changes in the person-in-charge of testing of Ayurvedic, Siddha and Unani drugs or the expert staff responsible for testing, as the case may be, and any material alterations in the premises or changes in the equipment used for the purposes of testing which have been made since the date of last inspection made on behalf of the approving authority before the grant or renewal of approval.

VI. The approved laboratory shall furnish reports of the results of tests or analysis in Form 50.

VII. In case any sample of Ayurvedic, Siddha and Unani drug is found on test to be not of standard quality, the approved laboratory shall furnish to the approving authority and the licensing authority of the State where the manufacturer and/or sender of the Ayurvedic, Siddha and Unani drugs is located, a copy of the test report of the sample with the protocols of tests applied.

VIII. The approved laboratory shall comply with the provisions of the Act and rules made thereunder and with such further requirements, if any, as may be specified in the rules made from time to time under Chapter IV-A of the Act of which the approving authority has given the approved laboratory not less than four months' notice.

IX. The approved laboratory shall maintain an inspection book to enable the Inspector to record his impression or defects noticed.

KEYWORDS/TRIGGERS:

Rule 160D, conditions of approval, approved laboratory, ASU drug testing, testing records, Form 50, laboratory inspection, standard quality